

24STCV31938 24STCV31938

County: los-angeles

Division: Civil Law and Motion

Department: 309

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Case Number: 24STCV31938 Hearing Date: August 31, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 17

TENTATIVE RULING

STEPHON WATFORD

vs.

PROMISE ASSISTED LIVING, LLC

Case

No.: 24STCV31938

Hearing Date: August 31, 2026

Plaintiff's motion for an order permitting discovery of the financial condition of Defendants Promise Assisted Living, LLC, Promise Assisted Living, LLC, Promise Hospice, Inc., and Zulficar Gregory Restum is DENIED.

On 12/4/2024,

Plaintiff Stephon Watford (Plaintiff) filed suit against Promise Assisted Living, LLC, alleging: (1) whistleblower retaliation; (2) retaliation and

discrimination; and (3) wrongful termination.

On 8/6/2026, Plaintiff moved for an order permitting discovery of the financial condition of Defendants Promise Assisted Living, LLC, Promise Assisted Living, LLC, Promise Hospice, Inc., and Zulficar Gregory Restum.

Discussion

Plaintiff argues that “there is a substantial probability that Plaintiff will prevail on his claim for punitive damages against these Defendants under Civil Code section 3294. The evidence, including Defendants’ verified discovery responses, the deposition testimony of Restum and Defendants’ own supervisors, the sworn responses of three separate government agencies, and Restum’s own supplemental declaration, establishes that Defendants terminated Plaintiff in retaliation for reporting an unsafe workplace and then fabricated, published, and threatened to republish a false accusation that Plaintiff sexually assaulted an elderly resident, and physically and verbally assaulted several other patients including in a written statement Restum sent to the Los Angeles County Child Support Services Department.” (Motion, ii: 9-17.)

There is a statutory presumption against pretrial financial discovery. Civil Code section 3295(c) provides: “No pretrial discovery by the plaintiff shall be permitted” concerning a defendant’s profits or financial condition without an order permitting such discovery. (Id.) Accordingly, “before a court may enter an order permitting discovery of a defendant’s financial condition, it must (1) weigh the evidence submitted in favor of and in opposition to the motion for discovery, and (2) make a finding that it is very likely the plaintiff will prevail on his claim for punitive damages.” (Jabro v. Superior Court (2002) 95 Cal.App.4th 754, 758; Civ. Code § 3295(c).) “[A] ‘substantial probability’ of prevailing on a claim for punitive damages means [concluding] that it is ‘very likely’ that the plaintiff will prevail on such a claim or there is a ‘strong likelihood’ that the plaintiff will prevail on such a claim.”

Here, after review, the Courts find insufficient evidence to conclude there is a substantial probability of Plaintiff prevailing on his claims. Plaintiff does not provide clear and convincing evidence that he made a “bona fide” complaint within the meaning of Labor Code section 6310, nor is the

evidence supporting his other retaliation cause of action clear and convincing that he engaged in protected activity or was retaliated against by either PAL or Promise Hospice, Inc.

Moreover, Defendants submitted evidence to show that Plaintiff quit his job, and that if he had not quit, his employment would have been terminated by PAL for abusing an elderly resident at PAL plus calling a remote supervisor extremely pejorative names. Accordingly, the Court finds that the claim for wrongful termination is not established by clear and convincing evidence, but rather that triable issues exist which support reasonable inferences on both sides.

Finally, as for the defamation claim, the Court finds that the evidence supports reasonable inferences on either side. As such, Plaintiff's evidence falls short of the clear and convincing standard.

In light of Plaintiff's failure to establish any of his claims by clear and convincing evidence, Plaintiff has necessarily failed to establish punitive damages with clear and convincing evidence.

Based on the foregoing, Plaintiff's motion for an order permitting discovery of the financial condition of Defendants Promise Assisted Living, LLC, Promise Assisted Living, LLC, Promise Hospice, Inc., and Zulficar Gregory Restum is denied.

It is so ordered.

Dated:
August , 2026

Hon. Jon R. Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at

by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.